

Overriding Interest. The attorney-client privilege and attorney work product doctrine constitute recognized overriding interests. *NBC Subsidiary*, 20 Cal.4th at p. 1222, fn. 46. Paragraphs 13 and 15-24 of the Complaint describe communications between Plaintiff and his supervising attorneys, County Counsel Larmour and Deputy County Counsel Weber, concerning legal strategy and litigation decisions in two matters. Plaintiff does not dispute that these communications arose within the attorney-client relationship. Instead, his Opposition argues that the crime fraud exception to the privilege applies. Plaintiff additionally argues that prior public disclosure waives the privilege.

Probability of Prejudice. A substantial probability of prejudice exists absent sealing. Public disclosure of privileged legal advice and attorney work product would reveal legal strategy and mental impressions of counsel and would chill full and candid communication between public entities and their counsel in ongoing and future matters.

Narrow Tailoring and Least Restrictive Means. The request is limited to paragraphs 13 and 15 through 24; the remainder of the Complaint remains publicly accessible. This is the type of limited sealing contemplated by CRC 2.550(e)(1)(B). A protective order would not provide an adequate alternative, as it governs only the use of information prospectively and does not remove privileged material already contained in a publicly filed pleading. No less restrictive means is available to protect the privileged communications at issue.

Crime Fraud Exception. The Court finds Plaintiff has not made the required prima facie showing under Evidence Code section 956 to invoke the crime-fraud exception. That exception requires evidence that the County sought counsel's assistance to enable or aid the commission of a crime or fraud, with the focus on the client's intent. *State Farm Fire & Casualty Co. v. Superior Court* (1997) 54 Cal.App.4th 625, 645. Plaintiff's Declaration is framed in terms of his belief that certain directives were unlawful. Assertions of fraud and conclusory statements do not satisfy the standard. *Johnson v. Department of Transportation* (2025) 109 Cal.App.5th 917, 942. Additionally, the crime-fraud exception does not extend to attorney work product. *BP Alaska Exploration, Inc. v. Superior Court* (1988) 199 Cal.App.3d 1240, 1262.

Prior Public Disclosure. The Court finds that the County's inclusion of related material in Plaintiff's personnel file, and its production of that file to Plaintiff on his request following his separation from employment, did not constitute disclosure to a third party. Personnel files are independently subject to confidentiality protections (Gov. Code, § 7927.700.), and the disclosure was to Plaintiff himself, not to the public or any third party.

The Motion is **GRANTED**. The Court orders that paragraphs 13 and 15 through 24 of Plaintiff's Complaint be filed under seal. All other portions of the Complaint remain part of the public file.

DUGO VS. MAIUU PARTNERS LLC

CASE NUMBER: 25CV-0208868

An Order to Show Cause Re: Sanctions ("OSC") issued on June 17, 2026, to Plaintiff and Counsel, for failure to timely serve Defendant as required by CRC 3.110(b). No response to the OSC has been filed. However, the Court notes that proper proof of service was filed on June 15, 2026, prior to the issuance of the OSC. The OSC is **DISCHARGED**. Sanctions will not be imposed. This matter is set for review regarding trial setting on **Monday, September 21, 2026 at 9:00 a.m. in Department 64**. Plaintiff is to give notice. No appearances are necessary on today's calendar.